

26VECV01502 26VECV01502

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-07-02

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Case Number: 26VECV01502 Hearing Date: July 2, 2026 Dept: I

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JENNIFER ANNE SATZMAN vs MARQUISUA ANN MCQUAY, et al.

July 2, 2026, at 8:30 a.m.

Van Nuys Courthouse East, Dept. I

Tentative Ruling – Motion for Order
for Relief From Claim Statute

I.

Background

On March

13, 2026, Plaintiff Jennifer Anne Satzman ("Plaintiff") filed a complaint against Defendants LA County Metropolitan Transportation Authority ("MTA"), Marquisua Ann McQuay ("McQuay"), Michael Linggadajaja ("Linggadajaja")(collectively "Defendants"), and Does 1 to 25 alleging two causes of action: (1) motor vehicle negligence; and (2) general negligence.

On June

4, 2026, Plaintiff filed the instant motion for relief from claim statute.

On June

18, 2026, MTA filed its opposition.

On June

25, 2026, Plaintiff filed her reply.

To date,

McQuay and Linggadaja have not filed any opposition.

II. Discussion

As a preliminary matter, the Court notes

that Plaintiff fails to file any proof of service of the instant motion. Cal.

Code of Civ. Proc. § 1005(b) requires that all moving and supporting papers

shall be served and filed on all parties at least 16 court days before the

applicable hearing. (See CCP § 1005(b).) The moving party may not limit

service to only the parties directly targeted by a motion; instead, the papers must go to each

party in the action who has not entered default. (See *Alford v. Superior Court*

(2003) 29 Cal.4th 1033.) Notably, proof of service of the summons and

complaint has not been filed as to McQuay; additionally, proof of service of

the summons and complaint reflects that Linggadaja was only recently served on

June 10, 2026, after this motion was filed. (See June 12, 2026, Proof of

Personal Service.)

Based on the foregoing, Plaintiff's

motion is denied without prejudice.

Moving party to give notice.